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Case Number: 24NWCV00192 Hearing Date: July 16, 2026 Dept: L

I.

Plaintiff's Motion for Protective Order

Regarding Defendants' Notice of Taking Deposition of Plaintiff and Request for Production of Documents is DENIED.

II.

Plaintiff's Motion to Quash Defendant's

Notice of Deposition of Jacob Spencer, D.O, is DENIED.

Plaintiff to give notice.

Background

This is a negligence action. On

January 18, 2024, Plaintiff Gregory Gorman ("Plaintiff") filed this action against Defendants First Transit, Inc. ("First Transit"), Jane Doe 1, and Does 1 to 10.

On April 28, 2025, Plaintiff

filed the First Amended Complaint (FAC), naming Loreen Joseph as Jane Doe 1 and naming Transdev Group, S.A., Transdev North America, Inc., and Transdev Services, Inc. as Does 2, 3, and 4.

On January 20, 2026, Plaintiff

filed the Second Amended Complaint.

On May 28, 2026, Plaintiff filed

the Third Amended Complaint (TAC). The TAC alleges that Plaintiff boarded a bus

owned and operated by Defendant First Transit. The bus driver, Loreen Joseph, allegedly accelerated the bus before Plaintiff could sit down, causing Plaintiff to fall to the floor. The TAC alleges the following causes of action: 1) Negligence, 2) Negligence Training and Supervision, and 3) Common Carrier Liability.

There are two matters on calendar:

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Plaintiff's Motion for Protective Order Regarding Defendants' Notice of Taking Deposition of Plaintiff and Request for Production of Documents ("Motion for Protective Order")

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Plaintiff's Motion to Quash Defendants' Notice of Deposition of Jacob Spencer, D.O ("Motion to Quash")

On May 12, 2026, Defendants Transdev Services, Inc., Transdev North America, Inc., First Transit, and Loreen Joseph (initially Jane Doe 1) (hereinafter, "Defendants") filed an opposition to Plaintiff's Motion for Protective Order.

The Court will address each Motion in turn.

In regard to the Motion to Quash, the Court notes that Plaintiff does not object to the Notice of Deposition on grounds that the form of the Notice is improper or that the Notice seeks privileged, burdensome, or irrelevant information. Rather, Plaintiff seeks a protective order to quash the deposition, citing Code of Civil Procedure section 2025.420 and provisions describing misuses of the discovery process. Both Motions are thus analyzed under the same legal standard.

Legal Standard

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order." (Code Civ. Proc., § 2025.420, subd. (a).)

“The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: ... (2) That the deposition be taken at a different time [and/or] (5) That the deposition be taken only on certain specified terms and conditions.” (Code Civ. Proc., § 2025.420, subd. (b).)

A party unsuccessfully moving for a protective order is subject to monetary sanctions unless it demonstrates substantial justification for the motion or other circumstances that would make imposition of a sanction unjust. (Code Civ. Proc., § 2025.420(h), 2017.020(b).)

Meet and Confer

A motion for protective order shall be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2025.420, subd. (a).)

Declarations from the parties' counsel demonstrate they met and conferred sufficiently regarding both Motions. (Wiggins Decls., ¶ 15; Wells Decls., ¶ 8.)

I.

Motion Protective Order

Evidentiary Objections

Plaintiff's Evidentiary Objections

to the Declaration of Aubrey Wells are overruled as to Nos. 1 to 9.

Defendants' evidentiary

objections to the Declaration of Herbert Wiggins in support of the reply and Exhibits 1 and 2 attached to the Declaration are sustained, in part, as to paragraphs 7 to 9 of the Declaration, and Exhibits 1 and 2. The Court notes that Plaintiff referred to the deposition testimony of Mr. Isaac Ibarra and Mr. Johnny Dunning, Jr. taken on April 8, 2026, in the Declaration of Herbert Wiggins in support of the Motion. (Wiggins Decl., ¶ 8.) However, the Court may

not consider excerpts from the deposition transcripts offered for the first time on reply (Exhibits 1 and 2).

Discussion

Plaintiff now moves for a protective order preventing Plaintiff's deposition. Plaintiff provides the following context to this Motion: On November 26, 2025, Plaintiff noticed a deposition for Defendant First Transit's Person Most Knowledgeable (PMK). (Wiggins Decl., ¶ 9, Exh. 2.) As of April 16, 2026, Defendants have refused to produce the PMK witness. (Wiggins Decl., ¶ 10.) On March 25, 2026, Defendants noticed Plaintiff's deposition for April 17, 2026. (Wiggins Decl., ¶ 12, Exh. 8.)

Plaintiff argues that Defendants have obstructed discovery by (1) resisting a full deposition of Defendant Loreen Joseph until Plaintiff obtained a court order compelling her to appear, and (2) refusing to produce Defendant First Transit's PMK for deposition before Plaintiff sits for his own. Plaintiff moves for an order to "halt [Plaintiff's] deposition until Defendant allows [its] PMK's [sic] depositions; provides full answers to overdue discovery responses; and ceases and desists from its abusive tactics, such as taking oral depositions of treating physicians, when their treatment records will suffice before expert discovery commences." (Mot., 6:20-25.)

Plaintiff cites to *Rosemont v. Superior Court of Los Angeles County* ("Rosemont") (1964) 60 Cal.2d 709 and *Poeschl v. Superior Court In and For Ventura County* ("Poeschl") (1964) 229 Cal.App.2d 383.

In opposition, Defendants argue that Plaintiff's suggested sequencing of discovery is unsupported by the law. Further, Plaintiff offers no explanation as to why Defendant's responses to Plaintiff's discovery is related to Plaintiff's ability to testify. Specifically, Plaintiff's Notice of Deposition to Defendant First Transit, Inc.'s PMK seeks "information regarding First Transit's history of operating municipal passenger buses, safety records, operation manuals, safety protocols, maintenance history, and training history." (See Wiggins Decl., ¶ 9, Exh. 2.) The written discovery seeks information regarding individuals who worked for the Transdev Defendants. (See Wiggins Decl., ¶ 11, Exhs. 4-5.) Thus, Plaintiff's cited cases are distinguishable from

this case. In those cases, the propounding party demonstrated that responses to the discovery were necessary for the party's ability to testify.

Further, Defendants argue that "one party's ongoing discovery does not freeze or prevent another party's discovery," citing Code of Civil Procedure, section 2019.020, subdivision (a) ["[T]he methods of discovery may be used in any sequence, and the fact that a party is conducting discovery, whether by deposition or another method, shall not operate to delay the discovery of any other party."].) Plaintiff also has not requested any sequencing of discovery under Code of Civil Procedure section 2019.020, subdivision (b).

Lastly, Plaintiff has failed to demonstrate good cause warranting a protective order. In other words, Plaintiff does not argue that the Notice of Deposition and Request for Production of Documents is unduly burdensome, oppressive, or in violation of Plaintiff's privacy rights. Plaintiff's deposition testimony and production of documents are "reasonably calculated to lead to the discovery of admissible evidence regarding causation and damages, the only disputed issues in this case." (Opp., 8:24-26.)

In reply, Plaintiff emphasizes that Defendant First Transit and its management has had knowledge of "safety problems" as early as 2022. (Reply, 2:4.) Plaintiff suggests that Defendant First Transit's PMK testimony is relevant to support his corporate liability and punitive damages claims. Plaintiff reiterates that Defendant First Transit refuses to produce its PMK while simultaneously demanding the deposition of Plaintiff, his family, and his doctors. Plaintiff argues that courts may intervene in the order of discovery "if it appears that one side is seeking to alter the order, or otherwise to take unfair advantage." (Reply, 5:11-12.)

The Court acknowledges Plaintiff's arguments that the deposition of Defendant's PMK is relevant to the issue of corporate liability and punitive damages. However, the issue here is not whether Plaintiff is entitled to take Defendant First Transit's PMK's deposition—rather, the issue is whether the deposition of Defendant's PMK is necessary to be taken before Plaintiff's deposition to avoid prejudice.

"Since discovery proceedings can seldom if ever be conducted simultaneously, it is inherent in

such proceedings that the party who secures discovery first may derive advantages by securing information from his adversary before he is required to reciprocate by divulging information to him. Parties should be encouraged to expedite discovery and should not needlessly be deprived of the advantages that normally flow from prompt action. Accordingly, the existence of such advantages alone will ordinarily not constitute good cause for changing the normal timing of discovery or justify a conclusion that such timing will result in 'annoyance, embarrassment, or oppression.' "

(Rosemont, *supra*, 60
Cal.2d at p. 714.)

In both Rosemont and Poeschl, cited by Plaintiff in his Motion, the Court of Appeal found it proper for the trial court to sequence discovery in a manner that did not disadvantage the plaintiff. However, Rosemont and Poeschl are distinguishable to this case on their facts. In both cases, the opposing party sought to withhold records of prior statements by the deponent until after the deponent sat for deposition. The trial courts found good cause to delay the depositions until after the deponents could review the recordings of their prior statements that were already in their opponents' possession, finding an unfair advantage would accrue if the opposing party did not disclose recordings before the depositions were taken.

Here, Plaintiff does not identify a specific prejudice that will result from taking his deposition before the deposition of Defendant First Transit's PMK. Plaintiff only complains of unfairness. Specifically, Plaintiff contends that 1) Defendants have withheld other discovery, including a prior-noticed PMK deposition, and 2) Defendants should not be permitted to depose Plaintiff while resisting Plaintiff's discovery. But unfairness is not good cause, by itself, to delay the discovery process. Unlike in Rosemont and Poeschl, Plaintiff does not contend that Defendants are withholding information he requires to refresh his recollection of events or that might be used to impeach him at trial or during his deposition.

Further, the Court notes that Defendants have stipulated to duty and breach—the only remaining issues are causation and damages. These issues will depend primarily on those with percipient knowledge of the incident. Disputes about other discovery do not

warrant delaying or preventing Plaintiff's deposition now that the relevant issues have been narrowed by stipulation.

Accordingly, Plaintiff's Motion for Protective Order Regarding Defendants' Notice of Taking Deposition of Plaintiff and Request for Production of Documents is DENIED.

Plaintiff is ordered to appear for a deposition and produce the requested documents. The parties shall meet and confer to determine the date, time, and location of the deposition, which shall take place no later than 30 days from the date of the Court's issuance of this order. The date may be extended by agreement of the parties.

Sanctions

In the opposition, Defendants request sanctions in the amount of \$2,600.00. Plaintiff objects to the form of the sanctions request.

Defendants contend Plaintiff's motion is not substantially justified because it has no legal basis. Although Plaintiff's Motion is unsuccessful, the Court disagrees that it has no legal basis. Rosemont and Poeschl are distinguishable, but Plaintiff's interpretation of the holdings are reasonable.

Thus, Defendants' request for sanctions is DENIED.

II.

Motion to Quash

Evidentiary Objections

Plaintiff's Evidentiary

Objections to the Declaration of Aubrey Wells are overruled as to Nos. 1 to 9.

Discussion

On April 1, 2026, Defendants noticed the deposition of Jacob Spencer, D.O. (hereinafter, "Dr. Spencer") for April

23, 2026. (Wiggins Decl., ¶ 12, Exh. 7.)

Plaintiff now moves to quash the Notice of Deposition. Plaintiff requests that the Court “block any deposition by Defendant until Plaintiff can depose Defendant’s PMK.” (Mot., 11:10-11.) In support of this Motion, Plaintiff makes similar arguments as he did in support of the Motion for Protective Order. Specifically, Plaintiff argues that Defendants should not be able to take the deposition of Plaintiff’s medical provider, where Defendants have been stonewalling discovery.

Plaintiff further argues that standard for health care provider discovery is to subpoena records of treaters first, and then take oral depositions of designated experts when expert discovery open. Plaintiff suggests that it is against custom for Defendants to take oral depositions of every treating physician before the opening of expert discovery. Plaintiff argues that such practice is “excessive, and apparently meant to intimidate Plaintiff, cause delay, and drive up costs [...]” (Mot., 10:24.)

In opposition, Defendants reiterate that “[d]iscovery may proceed in any sequence, and one party’s pending discovery does not operate to delay another party’s properly noticed deposition.” (Opp., 2:18-19.) In support, Defendants make similar arguments as they did in its opposition to the Motion for Protective Order. Further, Defendants argue that Plaintiff makes no showing of defects in the notice, privilege, or undue burden. Defendants are entitled to depose Plaintiff’s treating witnesses as relevant fact witnesses for the issues of causation and damages.

Additionally, Defendants assert that Plaintiff’s stated “standard for health care provider discovery” is unsupported by any authority. Defendants are able to depose Plaintiff’s treating physicians to establish the factual record. Such factual record would then be analyzed by expert witnesses. Thus, Plaintiff’s contention that physician depositions should be delayed until expert discovery would “invert that process and impede Defendants’ ability to develop the factual record needed for expert work.” (Opp., 10:5-6.)

In reply, Plaintiff reiterates that, in attempting to depose Plaintiff’s treating doctors out of the proper sequence, “Defendants seek to drive up costs, and intimidate Plaintiff into an

unfair, unreasonable, and unconscionable settlement.” (Reply, 5:3-4.) The Court should quash the deposition to prevent abuse of the discovery process.

The Court acknowledges Plaintiff's concerns. However, for the reasons stated in the Motion on Protective Order, the Court find that sequencing discovery in the manner suggested by Plaintiff is not appropriate under the circumstances.

Accordingly, Plaintiff's Motion to Quash is DENIED.

The parties are encouraged to meet and confer regarding the remaining Motions to Quash on calendar.

Sanctions

In the opposition, Defendants request sanctions in the amount of \$1,402.50.

For the same reasons stated the Motion for Protective Order, the Court denies Defendants' request for sanctions.